

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

Part Three — The Alberta Accessibility and Inclusion Act: A Constructive Blueprint

Section 3.6 — Consultation Requirements and Indigenous-Rights Integration: The Substantive Operational Frameworks

Section 3.4 established the Disability Community Education Consultation Council operating on education-specific policy and standards. Section 3.5 established the Disability Community Advisory Council operating cross-cuttingly across all substantive-standards areas, alongside the Standards Development Committees with at-least-50-percent disability-community representation. Section 3.6 develops two substantive frameworks that operate alongside and through the structures established in Sections 3.4 and 3.5: the substantive operational standards for what counts as adequate consultation under Article 4(3) of the United Nations *Convention on the Rights of Persons with Disabilities*, and the structural Indigenous-rights integration that operationalizes the British Columbia *Accessible British Columbia Act* precedent (Part Two Section 2.5) and Section 19 of that Act within Alberta provincial jurisdiction.

The two frameworks are developed in a single section because they intersect substantively. Indigenous-disability-community consultation operates within both the disability-rights framework (Article 4(3) of the CRPD) and the Indigenous-rights framework (Section 35 of the *Constitution Act, 1982*, the United Nations *Declaration on the Rights of Indigenous Peoples*, the Truth and Reconciliation Commission's Calls to Action, and the National Inquiry into Missing and Murdered Indigenous Women and Girls' Calls for Justice). The two frameworks are mutually reinforcing rather than conflicting, but the substantive content of each framework imposes specific operational requirements that the legislation must address. Section 3.6 develops both frameworks at the depth required for legislative-drafting input.

The section develops six substantive components. The first establishes Article 4(3)'s substantive operational standards: what counts as adequate consultation, distinguishing genuine consultation from performative consultation. The second establishes the cross-cutting consultation architecture for the legislation as a whole, building on Sections 3.4 and 3.5 and addressing operational gaps not covered by those sections. The third establishes the foundational framework for Indigenous-rights integration: UNDRIP, Section 35, treaty rights, the British Columbia DRIPA precedent. The fourth establishes the operational provisions for Indigenous-rights integration: voluntary participation, partnership agreements, and Indigenous-disability-community consultation infrastructure. The fifth addresses the TRC Calls to Action and MMIWG2S Calls for Justice frameworks within the legislation's operations. The sixth addresses the coordination between the two frameworks, with particular attention to the Indigenous-disability-community as the population at the substantive intersection of both frameworks.

The substantive content of Section 3.6 is grounded in the international human rights framework Canada has bound itself to (the CRPD, UNDRIP, and analogous instruments), in the Canadian-constitutional framework (Section 35 of the *Constitution Act, 1982*, the Charter, and analogous instruments), in the

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comparator-jurisdiction record (with particular attention to the British Columbia DRIPA precedent and the Saskatchewan disability-and-Indigenous-rights frameworks documented in Sections 2.5 and 2.6), and in the campaign's separate 195-page Indigenous Disability Alberta evidentiary record across seventeen substantive sections.

Article 4(3): The Substantive Operational Standard for Consultation

The legislation must establish substantive operational standards for what counts as adequate consultation under Article 4(3) of the United Nations *Convention on the Rights of Persons with Disabilities*. Without substantive standards, the consultation-requirement provisions throughout the legislation can be defeated through performative compliance: consultations that occur after policy decisions have been made, consultations that engage with disability-community input at the level of formality without engaging with the substantive content, consultations that produce documentary records without producing substantive policy adjustment, and analogous failure modes that the documented Alberta record (the Class Size and Complexity Cabinet Committee and the Aggression and Complexity in Schools Action Team operating without disability-community representation, documented in Section 1.3a) and the broader comparator record demonstrate to be operational realities.

The substantive content of the Article 4(3) operational standard must address five substantive criteria: timing, depth, documentation, response, and remedy. Each criterion specifies operational requirements that distinguish genuine consultation from performative consultation.

Timing: consultation must precede substantive policy decisions, not follow them. The substantive principle is that consultation conducted after a policy position has been developed is structurally limited to feedback on the policy as drafted; it cannot influence the substantive direction of the policy. Genuine consultation occurs at the stage at which substantive policy direction is being developed, when alternative directions remain operationally feasible and when the disability-community input can shape the substantive content rather than only the operational details. The legislation must establish that consultation under Article 4(3) occurs before substantive policy direction is established, not after.

Depth: consultation must engage with substantive content, not only with formal procedures. The substantive principle is that consultation processes that engage only with the formal procedures of policy development (the timelines, the document formats, the meeting structures) without engaging with the substantive content of the policy do not meet the Article 4(3) standard. Genuine consultation engages with the substantive content: the policy's substantive purposes, its substantive operational provisions, its substantive consequences for the disability community, and its substantive alternatives. The legislation must establish that consultation must engage with the substantive content of the policy, with the substantive expertise of the disability community recognized as substantively dispositive of the policy's substantive design rather than merely as one input among many.

Documentation: consultation must produce a substantive public record of disability-community input and the provincial-government's substantive engagement with that input. The substantive principle is that consultation processes that occur without substantive public documentation cannot be subject to substantive accountability. Genuine consultation produces a public record sufficient for the

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disability community, for legislators, for independent reviewers, and for the broader public to evaluate whether the consultation has met the Article 4(3) substantive standard. The legislation must establish that consultation must be documented with sufficient detail and sufficient public accessibility to enable substantive evaluation.

Response: the provincial government must publicly respond to the substantive disability-community input within a defined period. The substantive principle is that consultation processes that produce disability-community input without producing a substantive provincial-government response cannot be considered to have substantively engaged with the input. Genuine consultation produces a public response in which the provincial-government substantively addresses the input: which input has been adopted into the policy and why, which input has not been adopted and on what substantive grounds, and which input requires further substantive engagement before resolution. The legislation must establish that the provincial-government response is required, must be public, must address the substantive input rather than only the formal procedure, and must be subject to ongoing engagement where the substantive issues are not resolved by the initial response.

Remedy: consultation gaps must produce substantive consequences for the policy. The substantive principle is that policy developed through inadequate consultation cannot be considered to have met the Article 4(3) substantive standard regardless of subsequent operational implementation. The substantive remedy for consultation-gap failures must include: structural review of the policy's substantive content for consultation-gap consequences; re-opening of the substantive policy direction where the consultation gap has produced substantive policy errors; and structural-process remediation to ensure that subsequent policy on the same substantive area meets the Article 4(3) standard. The legislation must establish that consultation-gap failures are subject to substantive remedy rather than only to procedural acknowledgement.

The five-criterion framework provides the substantive operational standard against which consultation processes throughout the legislation are evaluated. The framework operates alongside the structural consultation bodies established in Sections 3.4 and 3.5 (the Disability Community Education Consultation Council, the Disability Community Advisory Council, the Standards Development Committees) and applies to all consultation processes the legislation establishes, regardless of which specific body is conducting the consultation.

The Cross-Cutting Consultation Architecture

The legislation must establish a cross-cutting consultation architecture that operates alongside the specific consultation bodies established in Sections 3.4 and 3.5 and that addresses operational consultation requirements not covered by those bodies. The cross-cutting architecture ensures that consultation operates throughout the legislation's operational life rather than only at specific procedural moments.

The substantive content of the cross-cutting architecture must establish: the substantive consultation requirement for any provincial-government action under or affecting the legislation that is not already addressed by the specific consultation bodies (consultation on legislation amendments, consultation on regulatory development under the legislation, consultation on operational policy of the Implementation

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Directorate, consultation on implementation guidance, and analogous matters); the substantive engagement requirement for the lead Minister's annual reports and the periodic statutory reviews (the disability community is engaged in the development of the reports and reviews, not only consulted on the final products); the substantive engagement requirement for inter-ministerial coordination on disability-affecting policy (where Ministers other than the lead Minister are developing policy that affects persons with disabilities, the consultation infrastructure operates regardless of which Minister is leading the development); the substantive engagement requirement for federal-provincial coordination on disability-affecting matters (where the provincial-government is engaging with federal-government policy development that affects persons with disabilities in Alberta, the disability community is substantively engaged in the development of the provincial-government position); and the substantive resourcing of the consultation architecture (the consultation bodies, the disability-community organizations engaged in consultation work, and the operational support for substantive engagement are funded at levels sufficient to enable substantive participation rather than only formal participation).

The cross-cutting architecture must address the operational reality that disability-community consultation work is substantial labour that has historically been conducted without compensation through the substantive expertise of disability-community organizations and the unpaid time of disability-community individuals. The substantive principle is that consultation work performed for the provincial-government's policy-development processes is substantive work that warrants substantive compensation. The legislation must establish operational provisions for the compensation of disability-community consultation work, including: honoraria or stipends for individuals participating in consultation processes, particularly individuals with disabilities whose participation requires accommodation; operational support for disability-community organizations' consultation work, recognizing that the substantive expertise the organizations bring to consultation processes has been developed over years of substantive operational work; and structural funding for the consultation infrastructure (the meeting venues, the accessibility accommodations, the document development, and the analogous operational components of substantive consultation processes).

The cross-cutting architecture must also address the substantive engagement of disability-community organizations operating outside the structural consultation bodies. The Disability Community Advisory Council, the Disability Community Education Consultation Council, and the Standards Development Committees operate as the structural representative bodies within the legislative architecture. The broader disability-community ecosystem operates through hundreds of organizations across Alberta serving specific populations, geographic regions, lifecycle stages, and substantive areas. The legislation must establish that the substantive consultation operates with the broader ecosystem, not only with the structural representative bodies. The operational mechanism includes: periodic broader-engagement consultations on substantive policy areas; structured disability-community-organization input on standards development; operational support for substantive disability-community-organization engagement with the legislation's processes; and substantive responsiveness to disability-community-organization input that may not be channelled through the structural representative bodies.

The Foundational Framework for Indigenous-Rights Integration

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The legislation must integrate Indigenous-rights frameworks at the structural-statutory level on the British Columbia *Accessible British Columbia Act* precedent (Part Two Section 2.5). The integration operationalizes Section 3.1 Choice 5 (Indigenous-rights structural integration on the British Columbia precedent) within the substantive provisions of the Alberta legislation.

The foundational instruments the integration operationalizes are: the United Nations *Declaration on the Rights of Indigenous Peoples* (UNDRIP), adopted by the UN General Assembly on 13 September 2007 and acknowledged by Canada in 2010; Section 35 of the *Constitution Act, 1982*, recognizing and affirming existing Aboriginal and treaty rights of the Aboriginal peoples of Canada (First Nations, Inuit, and Métis); the substantive treaty framework operating in Alberta, including Treaty 6 (1876, signed in Fort Carlton and Fort Pitt with substantial Alberta-area First Nations), Treaty 7 (1877, signed at Blackfoot Crossing with the Blackfoot Confederacy and other southern Alberta First Nations), Treaty 8 (1899, signed at Lesser Slave Lake with northern Alberta and other northern First Nations), and the Métis Settlements framework operating under the *Metis Settlements Act* and the *Constitution Act, 1982*; the British Columbia *Declaration on the Rights of Indigenous Peoples Act* (DRIPA, S.B.C. 2019, c. 44), which formally adopted UNDRIP into provincial law and provides the substantive precedent for Indigenous-rights integration in Canadian provincial legislation; and the federal *United Nations Declaration on the Rights of Indigenous Peoples Act* (S.C. 2021, c. 14), which establishes the federal framework for UNDRIP implementation in Canada.

The substantive content of the foundational-framework provision must establish: the legislation's substantive recognition of Section 35 of the *Constitution Act, 1982* as a foundational instrument that the legislation operates within and gives substantive effect to within the legislation's substantive scope; the legislation's substantive consideration of UNDRIP in the development and operation of the substantive standards, with the operational mechanism of statutory consideration parallel to the British Columbia *Accessible British Columbia Act* Section 19 framework; the legislation's substantive recognition of the treaty framework operating in Alberta as a foundational element of the legal and political context within which the legislation operates; and the legislation's substantive recognition that the Indigenous peoples of Alberta hold inherent rights of self-government that the provincial-government's legislative authority does not displace.

The substantive principle the foundational framework operationalizes is that Indigenous-rights frameworks are not external considerations the legislation may take into account on a discretionary basis. They are foundational elements of the legal and political context within which the legislation operates. The substantive integration is structural rather than additive: the legislation's substantive provisions are developed and operate within the Indigenous-rights framework, not alongside or above it.

The foundational framework also addresses the substantive distinction between provincial-government legislative authority and Indigenous-governance authority. The provincial-government's legislative authority operates within the constitutional and treaty framework that recognizes Indigenous-governance authority. The legislation does not extend the provincial-government's regulatory authority to Indigenous-governance entities; rather, the legislation establishes the framework within which provincial-government and Indigenous-governance entities can engage cooperatively on substantive accessibility-and-inclusion work. The operational mechanism is the voluntary-participation and partnership framework developed in the next component of Section 3.6.

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The Operational Provisions for Indigenous-Rights Integration

The substantive content of the operational provisions for Indigenous-rights integration must establish four substantive components: the voluntary-participation framework for Indigenous-governance entities, the partnership-agreement framework for cooperative work, the Indigenous-disability-community consultation infrastructure, and the substantive engagement of the Indigenous-rights frameworks in the standards-development processes.

The voluntary-participation framework for Indigenous-governance entities. The legislation must establish that First Nations governance, Métis Settlement governance, and Indigenous-organization governance entities operating in Alberta are not directly regulated by the legislation but are eligible to participate voluntarily in the substantive-standards architecture. The framework operationalizes the substantive principle established in the foundational framework: provincial-government regulatory authority does not extend to Indigenous-governance entities, but cooperative engagement is operationally feasible and substantively valuable. The voluntary-participation provisions include: the structural availability of the substantive standards as guidance for Indigenous-governance entities that wish to apply the standards in their own jurisdictions; the operational support from the Implementation Directorate for Indigenous-governance entities engaged in voluntary application of the standards; the structural availability of training and technical-assistance resources to Indigenous-governance entities; and the operational respect for Indigenous-governance authority in determining the substantive content and operational delivery of accessibility provisions within Indigenous-governance jurisdictions.

The partnership-agreement framework. The legislation must establish a structural framework for partnership agreements between the provincial-government and Indigenous-governance entities on accessibility-and-inclusion matters. Partnership agreements are the operational mechanism through which substantive cooperative work is structured. The substantive content of the partnership-agreement framework includes: the structural availability of partnership agreements at the request of an Indigenous-governance entity; the substantive development of partnership agreements through nation-to-nation engagement with the Indigenous-governance entity, recognizing the substantive authority of the Indigenous-governance entity in determining the partnership's terms; the substantive content the partnership agreements may address, including substantive accessibility standards within Indigenous-governance jurisdictions, cooperative service delivery between provincial-government and Indigenous-governance bodies, federal-provincial-Indigenous coordination on Indigenous-disability-community matters (including but not limited to Jordan's Principle administration), and analogous substantive content; the operational support from the Implementation Directorate for partnership-agreement development and implementation; and the substantive respect for the Indigenous-governance entity's authority in implementing and administering partnership agreements.

The Indigenous-disability-community consultation infrastructure. The legislation must establish substantive Indigenous-disability-community consultation infrastructure that operates within and alongside the broader disability-community consultation architecture. The Indigenous-disability-community has substantive distinct concerns that the broader disability-community consultation infrastructure does not fully address, including: the federal-provincial Jordan's Principle interface and the documented

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eligibility-narrowing impact on Alberta school divisions documented in Section 1.3a; the substantive intersection of disability with treaty and Aboriginal rights, requiring substantive engagement with the Indigenous-rights framework at the disability-policy level; the cultural-context-specific accommodation requirements that operate in addition to the broader accessibility standards; the historical-trauma context of the disability-policy framework, including the operational legacy of residential schools, the 60s Scoop, the millennium scoop, and the analogous historical patterns documented in the Truth and Reconciliation Commission's Final Report; and the ongoing colonial-disability dimensions documented in the campaign's separate 195-page Indigenous Disability Alberta evidentiary record across seventeen substantive sections.

The substantive consultation infrastructure includes: an Indigenous-Disability-Community Consultation Council operating alongside the Disability Community Advisory Council established in Section 3.5, with substantive representation from First Nations disability-community representatives, Métis disability-community representatives, Inuit disability-community representatives where Inuit communities are established in Alberta, and Indigenous-disability-organization representatives; substantive engagement with the Indigenous-Disability-Community Consultation Council at the same operational level as the Disability Community Advisory Council; structural-funding provisions for the Indigenous-Disability-Community Consultation Council and for the Indigenous-disability-community organizations engaged in the consultation work; and the substantive integration of Indigenous-disability-community input throughout the legislation's operational life.

The substantive engagement of Indigenous-rights frameworks in standards-development processes. The Standards Development Committees established in Section 3.5 are required to substantively engage with the Indigenous-rights framework in the development of each substantive-standards area. The substantive engagement includes: substantive consideration of UNDRIP provisions relevant to the substantive-standards area; substantive consideration of Section 35 implications relevant to the substantive-standards area; substantive consultation with the Indigenous-Disability-Community Consultation Council on the substantive content of the standards; substantive engagement with Indigenous-governance entities through the partnership-agreement framework where the substantive content of the standards intersects with Indigenous-governance jurisdictions; and substantive integration of the Indigenous-rights framework into the standards' substantive content rather than only into procedural acknowledgements.

The TRC and MMIWG2S Frameworks Within the Legislation

The legislation must integrate the substantive content of the Truth and Reconciliation Commission's Calls to Action (2015) and the National Inquiry into Missing and Murdered Indigenous Women and Girls' Calls for Justice (2019) into its operational frameworks. The integration operationalizes the substantive principle that Indigenous-rights integration is structural and substantive rather than rhetorical or procedural.

The substantive content of the TRC integration must address the Calls to Action substantively relevant to the disability-policy and accessibility-policy domains. The TRC's 94 Calls to Action address multiple substantive areas; the substantively relevant Calls for the legislation include: Calls to Action 18 to 24 (health), addressing Indigenous health issues including Indigenous-specific health-services delivery,

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healthcare-worker training in Indigenous health, and the substantive structural-funding inadequacy of Indigenous-specific health services; Calls to Action 6 to 12 (education), addressing Indigenous education issues including the substantive structural-funding inadequacy of First Nations education and the substantive recognition of Indigenous education sovereignty; Calls to Action 1 to 5 (child welfare), addressing the substantive over-representation of Indigenous children in the child-welfare system, with the substantive disability-policy intersection through the documented disability-prevalence in the Indigenous-children-in-care population; and analogous Calls to Action with substantive disability-policy implications. The legislation's substantive engagement with the TRC Calls to Action operates through the Indigenous-Disability-Community Consultation Council, through the partnership-agreement framework, and through the substantive integration of TRC content into the standards-development processes.

The substantive content of the MMIWG2S integration must address the Calls for Justice substantively relevant to the disability-policy and accessibility-policy domains. The MMIWG2S Calls for Justice address the substantive structural conditions producing the disproportionate violence against Indigenous women, girls, and Two-Spirit and gender-diverse persons. The substantive disability-policy intersection includes: the substantive disability-prevalence among Indigenous women and girls, including the substantive incidence of acquired disability through violence; the substantive structural barriers Indigenous women and girls with disabilities face in accessing safety services, healthcare, and disability supports; the substantive intersection of colonial-disability dimensions with the colonial-gender-violence dimensions; and the substantive operational engagement with Indigenous-women-and-girls disability-community organizations in the legislation's operational life.

The substantive integration of both frameworks operates through the operational mechanisms established in the prior components of Section 3.6: the Indigenous-Disability-Community Consultation Council, the partnership-agreement framework, the Standards Development Committees' substantive engagement with the Indigenous-rights frameworks, and the cross-cutting consultation architecture.

The campaign's separate 195-page Indigenous Disability Alberta evidentiary record provides the substantive documentary foundation for the legislation's engagement with the Indigenous-rights frameworks. The evidentiary record's seventeen sections address: historical context, mortality gap, jurisdictional fracture, housing, contaminated land, water, healthcare, Jordan's Principle, child welfare, justice, MMIWG2S, UNDRIP, sovereignty, TRC health Calls to Action, July 1 synthesis (the AISH-to-ADAP transition's Indigenous-disability-community implications), closing, and federal-provincial clawback. The evidentiary record is incorporated by reference as substantive background for the legislation's substantive provisions, and the substantive content of the record informs the standards-development processes, the Implementation Directorate's operational work, and the periodic statutory reviews.

Coordination Between the Two Frameworks

The legislation must establish structural-coordination provisions between the disability-rights consultation framework and the Indigenous-rights consultation framework, with particular attention to the Indigenous-disability-community as the population at the substantive intersection of both frameworks. The substantive principle is that the two frameworks are mutually reinforcing rather than conflicting and that the

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structural-coordination provisions ensure substantive engagement with both frameworks throughout the legislation's operational life.

The substantive content of the coordination provisions must establish: the structural relationship between the Disability Community Advisory Council and the Indigenous-Disability-Community Consultation Council, with provisions for joint meetings on substantive matters affecting the Indigenous-disability-community, for substantive cross-Council communication, and for shared substantive engagement with the legislation's processes; the substantive principle that the Indigenous-disability-community has authority to determine which Council framework is operationally appropriate for specific substantive engagement (some substantive matters are appropriately addressed through the Indigenous-Disability-Community Consultation Council; other substantive matters are appropriately addressed through the Disability Community Advisory Council with substantive Indigenous-disability-community participation; the Indigenous-disability-community determines which framework is operationally appropriate); the operational mechanisms for substantive engagement of the Indigenous-disability-community in the standards-development processes, in the operational work of the Implementation Directorate, in the compliance and enforcement architecture's operations, and in the periodic statutory reviews; and the substantive recognition that the Indigenous-disability-community's substantive engagement may operate through Indigenous-governance entities rather than through Indigenous-disability-organization-representative bodies, where the substantive matter is appropriately addressed through Indigenous-governance authority.

The coordination provisions must also address the substantive intersection of the disability-rights and Indigenous-rights frameworks at the policy level. Where substantive policy decisions implicate both frameworks, the substantive engagement must address both frameworks substantively rather than treating one framework as primary and the other as secondary. The operational mechanism includes: substantive joint analysis of policy proposals against both frameworks; substantive consultation with both Councils on the policy decisions; substantive engagement with Indigenous-governance entities where the substantive matter intersects with Indigenous-governance jurisdictions; and substantive documentation of how the policy decision addresses both frameworks in its substantive content.

What Section 3.6 Establishes

The substantive operational frameworks for consultation requirements and Indigenous-rights integration of the *Alberta Accessibility and Inclusion Act* are now specified at the depth required for legislative-drafting input. The frameworks comprise six substantive components: the Article 4(3) substantive operational standard for consultation, with five substantive criteria (timing, depth, documentation, response, remedy) distinguishing genuine consultation from performative consultation; the cross-cutting consultation architecture establishing substantive consultation requirements throughout the legislation's operational life, with substantive resourcing of the consultation infrastructure including compensation for disability-community consultation work; the foundational framework for Indigenous-rights integration, operationalizing UNDRIP, Section 35 of the *Constitution Act, 1982*, the treaty framework operating in Alberta, and the British Columbia DRIPA precedent; the operational provisions for Indigenous-rights integration, including the voluntary-participation framework for Indigenous-governance entities, the

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partnership-agreement framework for cooperative work, the Indigenous-disability-community consultation infrastructure (with the Indigenous-Disability-Community Consultation Council operating alongside the Disability Community Advisory Council), and the substantive engagement of Indigenous-rights frameworks in the standards-development processes; the TRC Calls to Action and MMIWG2S Calls for Justice integration, with substantive disability-policy engagement on the relevant Calls; and the structural-coordination provisions between the disability-rights and Indigenous-rights consultation frameworks, with substantive recognition of the Indigenous-disability-community's authority to determine which framework is operationally appropriate for specific substantive engagement.

The substantive frameworks are designed to address the documented Alberta record. The Article 4(3) substantive operational standard addresses the consultation gaps documented in Section 1.3a (the Class Size and Complexity Cabinet Committee and the Aggression and Complexity in Schools Action Team operating without disability-community representation) by establishing substantive criteria against which consultation processes are evaluated. The Indigenous-rights integration addresses the structural absence of Indigenous-rights frameworks from the existing Alberta disability-policy architecture by establishing structural-statutory integration on the British Columbia precedent. The TRC and MMIWG2S integration addresses the documented intersection of colonial-disability dimensions with the broader Indigenous-rights framework, drawing on the campaign's separate 195-page Indigenous Disability Alberta evidentiary record as substantive documentary foundation.

The substantive frameworks operate alongside and through the structures established in Sections 3.4 and 3.5. The Disability Community Education Consultation Council, the Disability Community Advisory Council, the Standards Development Committees, and the Indigenous-Disability-Community Consultation Council together constitute the structural consultation infrastructure of the legislation. The substantive operational standards developed in Section 3.6 establish how the structural consultation infrastructure operates in substantive terms. The two together deliver the substantive consultation architecture the legislation requires.

The substantive frameworks operate consistent with the design philosophy and foundational choices of Section 3.1. The disability-community-co-authorship principle is operationalized through the substantive consultation operational standards and through the structural consultation infrastructure. The Indigenous-rights structural integration foundational choice (Choice 5) is operationalized through the foundational framework, the operational provisions, the TRC and MMIWG2S integration, and the coordination provisions. The international-compliance-as-floor-not-ceiling principle is operationalized through the substantive engagement with the international human rights instruments (CRPD, UNDRIP) at the structural-statutory level rather than only at the rhetorical level. The substantive-equality and systemic-transformation principles are operationalized through the substantive engagement of the disability community and the Indigenous-disability-community in the legislation's operational work, ensuring that the substantive standards and operational mechanisms reflect the substantive lived experience of the populations the legislation is intended to serve.

The next section turns to the implementation timeline, funding-and-resourcing provisions, and federal-coordination matters that determine how the legislation's substantive provisions are operationally delivered over time.